

of the counsel on prior disputes, and to a certain extent, the judge's gut feeling; sending one brief letter 13 days prior to the deadline to file a motion to compel further responses did not constitute a sufficient "meet and confer" attempt].

The purposes behind the meet and confer requirement are to force the parties to reexamine their positions, and to narrow their disputes to the "irreducible minimum" before asking the court to resolve them. Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026), §8:1159, p. 67; See also Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1281, quoting *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431 [“‘informal resolution’ of discovery disputes ‘entails something more than bickering with (opposing counsel).’ Rather, the statute ‘requires that there be a serious effort at negotiation and informal resolution.’”]

While Plaintiff’s counsel adequately met and conferred as to Request for Production No. 9 and Special Interrogatory No. 1 prior to the filing of this motion, Defendant served further responses to the other six discovery requests at issue before this motion was filed, and Plaintiff’s counsel undertook no new meet and confer efforts after receiving those further responses. The service of those further responses started a new 45-day deadline to file a motion to compel even further responses to those further responses.

The motion is therefore denied as to Requests for Production 1, 7, and 11-14.

The motion is also denied as to Requests for Production No. 9 and Special Interrogatory No. 1. Defendant served further responses around the time of filing opposition to this motion, to trigger a new 45-day deadline and a new duty on the part of Plaintiff’s counsel to meet and confer, over those further responses.

The service of those amended responses to the latter two discovery requests did not necessarily render moot Plaintiff’s request for monetary sanctions. However, noting the inclusion in this motion of the other six discovery requests, and Plaintiff’s deposition cancellations of the employee witnesses identified in Defendant’s responses to the other two discovery requests, the court finds that other circumstances weigh against the imposition of any sanctions.

SMIRETH SWEET vs. MICHAEL GUNN
Case No. CU26-01273

Motion for Trial Preference

TENTATIVE RULING

Parties are to appear, with Plaintiff expected to explain her claim of monthly expenses in Solano County exceeding \$8,300, despite her other claims that she is no longer employed (and thus not commuting on a daily basis to Santa Clara County), as well as her latest admissions that she is receiving child support biweekly of over \$5,000; and

Defendants their assertions that they cannot complete discovery if this motion for trial preference were to be granted.

EDWIN A. LICHWA vs. HAROLD E. DURBIN; ET AL.
Case No. FCS058762

DURBIN's Motion for Summary Judgment

TENTATIVE RULING

Defendant HAROLD EDWIN DURBIN ("DURBIN") moves for summary judgment against Plaintiff EDWIN ALPHONSE LICHWA's ("EDWIN") complaint alleging negligence. EDWIN alleges, as relevant, that DURBIN's negligence caused the death of EDWIN's son NOAH ANTHONY LICHWA ("NOAH") in an all-terrain vehicle incident.

The court has not received opposition to the motion for summary judgment.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

If the party opposite a motion for summary judgment fails to file a separate statement of undisputed material facts, the court has discretion to grant the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) However, even where a party fails to file any opposition to a motion for summary judgment, the court may only grant the motion if the moving party has met its burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086.) A defendant's summary judgment motion in particular meets its burden of showing there is no merit to the cause(s) of action if the defendant shows that any element of the cause(s) of action cannot be proven or that there is a complete defense. (Code Civ. Proc., §437c, subd. (p)(2).)